

Nauru 2024 Human Rights Report

Executive Summary

There were no significant changes in the human rights situation in Nauru during the year.

Significant human rights issues included credible reports of serious restrictions on freedom of expression and media freedom, including government control of all media.

The government took credible steps to identify and punish officials who committed human rights abuses.

Section 1. Life

a. Extrajudicial Killings

There were no reports the government or its agents committed arbitrary or unlawful killings during the year.

b. Coercion in Population Control

There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

Section 2. Liberty

a. Freedom of the Press

The constitution provided for freedom of expression, including for members of the press and other media; however, the government owned all media and exercised significant editorial control over content.

Censorship by Governments, Military, Intelligence, or Police Forces, Criminal Groups, or Armed Extremist or Rebel Groups

According to journalists, self-censorship was widespread, practiced by virtually all members of the media. Concern for job security given government ownership of all outlets was cited as one significant cause; additionally, journalists cited fear of legal repercussions for any reporting critical of the government or judiciary. Foreign journalists cited hefty visa application fees as continuing to hamper their ability to cover conditions for asylum seekers and refugees.

b. Worker Rights

Freedom of Association and Collective Bargaining

The law provided for the right of workers to form and join independent trade unions or other associations. It restricted freedom of association for police. While the right to strike was neither protected nor prohibited by

law, a civil servant could not foment or take part in a strike and could be summarily dismissed if found guilty of organizing a strike. The law was silent on the right of workers to bargain collectively. The law did not prohibit antiunion discrimination, and there was no legal requirement to reinstate workers dismissed due to union activity; however, workers could seek redress through the civil court system.

The government effectively enforced the law, although gaps in worker protections remained. Penalties for violations included fines, which were commensurate with those for other laws involving denials of civil rights. Penalties were regularly applied against violators.

The country lacked formal trade unions. Worker interests were represented by informal associations. The transient nature of the mostly foreign workforce hampered efforts to organize trade unions.

Forced or Compulsory Labor

The constitution prohibited but did not criminalize all forms of forced or compulsory labor. The government did not effectively enforce the law. The law did not stipulate penalties, and there were no labor inspectors. Civil courts handled cases of forced labor. There were no reports of forced labor or of government efforts to investigate, prosecute perpetrators, or remove victims of forced labor.

Acceptable Work Conditions

Wage and Hour Laws

The minimum starting salary for public-sector employees was above the poverty level. There was no minimum salary for the private sector. The law outlined a standard eight-hour workday for permanent and contract employees; workers were not required to work longer than nine hours.

Public-service regulations governed salaries, working hours, vacation periods, and other employment matters for government workers, who constituted more than 90 percent of salaried workers. The government had a graduated salary system for public-service officers and employees. The law provided for maternity leave after a woman had completed six months of employment.

There was no limit to the maximum number of accumulated overtime hours and no prohibition on excessive or compulsory overtime for workers in the public sector. No specific regulations governed overtime or overtime pay for private-sector workers.

Occupational Safety and Health

Although the government set some occupational safety and health (OSH) standards, they did not have the force of law. The law did not provide workers the right to remove themselves from a hazardous workplace

without jeopardizing their employment.

Wage, Hour, and OSH Enforcement

The Department of Human Resources and Labor effectively enforced OSH standards in the public sector. Enforcement was lax in the private sector, but no violations of labor regulations were reported. The law allowed the department the right to inspect a workplace without prior notification.

Authorities could charge an employer with a criminal offense if found to be in violation of the labor law or the provisions of an employment contract.

Penalties were commensurate with those for similar violations and were regularly applied. The number of inspectors was insufficient to monitor compliance fully.

Most workers were employed in the informal sector in subsistence agriculture, fishing, and copra gathering. Laws and regulations on working conditions applied to the informal sector but were not enforced. Violations were reportedly common, but inspections of the informal sector did not occur.

c. Disappearance and Abduction

Disappearance

There were no reports of enforced disappearances by or on behalf of government authorities.

Prolonged Detention without Charges

The law prohibited arbitrary arrest and detention while providing for the right for any person to challenge the lawfulness of their arrest or detention in court, and the government generally observed these requirements.

d. Violations in Religious Freedom

See the Department of State's annual *International Religious Freedom Report* at <https://www.state.gov/international-religious-freedom-reports/>.

e. Trafficking in Persons

There were no confirmed reports during the year that traffickers exploited domestic or foreign victims in the country or that traffickers exploited nationals as victims abroad.

Section 3. Security of the Person

a. Torture and Cruel, Inhuman, or Degrading Treatment or Punishment

The constitution prohibited such practices, and there were no reports government officials employed them.

b. Protection of Children

Child Labor

There were no confirmed reports during the year of the worst forms of child labor. The worst forms of child labor were not prohibited. The law set the minimum age of employment at 16. No regulations governed the type of work, occupation, or hours for workers younger than age 18, nor did they identify hazardous occupations. The government effectively enforced the law in the public sector but conducted no workplace inspections of private businesses. Penalties were not commensurate with those for other analogous serious crimes but were regularly applied against violators.

The two largest employers – the government and the phosphate industry – respected minimum age restrictions.

Child Marriage

The law prohibited marriage by persons younger than 18. According to the organization Girls Not Brides, the most recent data available indicated that 27 percent of girls in Nauru were married before the age of 18 and 2 percent were married before age 15.

c. Protection to Refugees

The government cooperated with the Office of the UN High Commissioner

for Refugees and other humanitarian organizations in providing protection and assistance to refugees, returning refugees, asylum seekers, stateless persons, or other persons of concern.

Provision of First Asylum

The law provided for the granting of asylum or refugee status, and the government had a system for providing protection to refugees. The law included a provision for nonrefoulement. Refugee advocates noted, however, the government allowed refugees to reside in the country only temporarily pending resettlement to a third country. The government did not provide a pathway to gain citizenship.

In August, the Australian government confirmed it had reopened its offshore processing center in the country for asylum seekers (used to house individuals seeking refuge or asylum in Australia), a site criticized for its poor conditions, which had closed in June 2023. The site was reportedly holding nearly 100 asylum seekers.

d. Acts of Antisemitism and Antisemitic Incitement

The country did not have a Jewish community, and there were no known reports of antisemitic incidents.